

Chapter 600 Regulations for Overlay Zones

600.5 General Regulations Applying to Overlay District

(1) (THIS SECTION DOES NOT CURRENTLY CONTAIN REGULATIONS)

600.5.1 General

600.5.1.10 Interpretation

(1) Purpose of a Community Overlay District Map

A Community Overlay District Map may alter, add or remove some of the regulations affecting the use of land within an area depicted on the Community Overlay District Map. [By-law: 1050-2013(LPAT)]

600.10 Building Setback Overlay District Map

600.10.10 Building Setback Overlay District "A"

(1) District "A" Building Setback

The areas within the heavy lines on the Building Setback Overlay District Map in Diagram 1 of By-law 1107-2016 identified as area 'Toronto Downtown' are subject to the following:

- (A) Despite clauses 10.10.40.70, 15.10.40.70, 15.20.40.70 and 50.10.40.70 and regulations 10.5.40.71(2), (3), (4) and (6), 15.5.40.71(2), 40.5.40.71(2), 40.10.40.70(1)(2) and (3), 50.5.40.71(2), every **building** with a height greater than 36.0 metres must maintain a **building setback** as follows for the portions of the **building** that collectively enclose the entirety of a **storey** with a height greater than 24.0 metres:
 - (i) the greater of:
 - (a) 3.0 metres from a **lot line** that abuts a **street**; and
 - (b) 12.5 metres from the centre line of that abutting **street**.
 - (ii) at least 12.5 metres from the centre line of an abutting **lane**; and
 - (iii) at least 12.5 metres from a **lot line** having no abutting **street** or **lane**.
- (B) Despite clauses 40.10.40.80 and 50.10.40.80 and regulations 10.10.40.80(1), 15.10.40.80(1) and (2), 15.20.40.80(1)(2) and (3), every **building** with a height greater than 36.0 metres must be separated by at least 25.0 metres from each other **building** with a height greater than 36.0 metres on the same **lot**, measured only for the portions of the **buildings** that collectively enclose the entirety of a **storey** with a height greater than 24.0 metres.
- (C) If a line projected at a right angle from a **main wall** of a **building** with a height greater than 36.0 metres intercepts another **main wall** of the same **building**, those **main walls** must be separated by a minimum of 25.0 metres, measured only for the portions of the **building** that collectively enclose the entirety of a **storey** with a height greater than 24.0.
- (D) Despite regulations 10.5.40.60(3) and (6), 15.5.40.60(3), 40.10.40.60 (3) and (6), 50.10.40.60 (3) and (6) for a **building** that has a height greater than 36.0 metres, the following projections attached to the portions of the **building** that collectively enclose the entirety of a **storey** with a height greater than 24.0 metres must not encroach into the **building setbacks** required in regulation 600.10.10(1)(A):
 - (i) bay windows;
 - (ii) box windows;
 - (iii) other window projections;
 - (iv) other window projections;
 - (v) access ramps;
- (E) Despite clauses 10.5.40.60, 15.5.40.60, 40.10.40.60 and 50.10.40.60, for a **building** that has a height greater than 36.0 metres, the following **building** elements attached to the portions of the **building** that collectively enclose the entirety of a **storey** with a height greater than 24.0 metres may encroach into the **building setback** and separation distances required in regulations 600.10.10(1)(A), 600.10.10(1)(B) and 600.10.10(1)(C):
 - (i) a platform, such as a balcony, projecting not more than 1.5 metres;
 - (ii) a canopy, awning or similar **structure**, with or without structural support, or a roof over a platform which complies with regulation 600.10.10(1)(E)(i), projecting not more than 1.5 metres;
 - (iii) if the **building** is at least 5 years old, cladding added to the original exterior surface of the **main wall** of the **building**, projecting not more than 0.15 metres;
 - (iv) architectural features, including a pilaster, decorative column, cornice, sill, belt course or other similar architectural feature, projecting not more than 0.3 metres;
 - (v) eaves, projecting not more than 0.9 metres; and
 - (vi) equipment, including a vent or pipe, projecting not more than 0.6 metres.

(F) Despite the regulations in 600.10.10(1)(E), **building** elements which are permitted to encroach into either the **building setback** required in regulation 600.10.10.(1)(A) or the separation distances required in regulations 600.10.10(1)(B) and 600.10.10(1)(C) must not penetrate into a required **angular plane**. [By-law: 1107-2016]

(2) Building Constructed According to Building Permit

None of the provisions of Article 600.10.10 Building Setback Overlay District "A" apply to prevent the erection or use of a **building** or **structure** constructed pursuant to a building permit issued prior to October 4, 2016. [By-law: 1107-2016]

(3) Building in Institutional Zone Category

None of the provisions of Article 600.10.10 Building Setback Overlay District "A" apply to prevent the erection or use of a **building** or **structure** on lands located within a zone in the Institutional Zone category as set out in Article 1.40.80, provided the use of such **building** or **structure** is a use identified as permitted in an Institutional Zone category. [By-law: 1107-2016]

(4) Prevailing Site Specific By-laws

None of the provisions of this Article 600.10.10 Building Setback Overlay District "A" apply to prevent the erection or use of a **building** or **structure** permitted by any one or more of the following amending by-laws to the **Former General Zoning By-law** 438-86 and/or by any one or more of the following amending by-laws to this By-law including as such may be amended pursuant to a Section 34 Planning Act By-law or varied by a Section 45 Planning Act minor variance:

By-law 1980-0097 – Respecting Ryerson University;
By-law 1980-0831 – Respecting 399 Bathurst Street (University Health Network);
By-law 1988-0998 – Respecting 40 Temperance Street;
By-law 1989-0527 – Respecting Ryerson University;
By-law 1994-0605 – Respecting 40 Temperance Street;
By-law 1996-0483 – Respecting 7, 15, 25R, 29 and 39 Queens Quay East;
By-law 1999-0068 – Respecting 30 Bond Street (St. Michael's Hospital);
By-law 2002-0927 – Respecting 381-411 Richmond Street East and 424-460 Adelaide street East;
By-law 2003-0101 – Respecting 837 and 837R Yonge Street;
By-law 2005-0141 – Respecting the Regent Park Area;
By-law 2005-0180 – Respecting 30 Mutual Street and 88 Queen Street East;
By-law 2006-0460 – Respecting 40 Temperance Street;
By-law 2006-1049 – Respecting the East Bayfront – West Precinct;
By-law 2008-0060 – Respecting 4, 6 and 8 St. Thomas Street and 100-110 Charles Street West;
By-law 2008-0860 – Respecting 1 Front Street East, and 5 and 7 The Esplanade;
By-law 2009-0912 – Respecting 399 Bathurst Street (University Health Network);
By-law 2009-0943 – Respecting the Regent Park Area;
By-law 2010-0490 – Respecting 46-52 Spadina Avenue and 378 Wellington Street West;
By-law 2010-0787 – Respecting 2 Bloor Street West;
By-law 2010-1041 – Respecting 335 King Street West, 355 King Street West and 119 Blue Jays Way;
By-law 2010-1046 – Respecting 880 Bay Street, a portion of 900 Bay Street and 60 Grosvenor Street;
By-law 2010-1118 – Respecting 203 Jarvis Street;
By-law 2010-1129 – Respecting 99 Blue Jays Way;
By-law 2010-1174 – Respecting the Keating Channel Precinct West;
By-law 2012-0523 – Respecting 94 Cumberland Street and 24 and 25 Bellair Street;
By-law 2012-0680 – Respecting 7, 15, 25R, 29 and 39 Queen Quay East;
By-law 2012-1035 – Respecting 571 Dundas Street West, 21, 21a, 23, 23a, 91 Augusta Avenue, 73-75 Augusta Square and 20 Vanauley Street;
By-law 2012-1048 – Respecting 576, 578 and 580 Front Street West, 25 and 27 Bathurst Street, 33 and 35 and 49 Niagara Street;
By-law 2012-1049 – Respecting 1, 3, 5, 7 and 9 Sultan Street, and 11 St. Thomas Street;
By-law 2012-1556 – Respecting 357-363 King Street West and 62 Peter Street;
By-law 2013-0444 – Respecting 261 Queens Quay East;
By-law 2013-0623 – Respecting 281-289 Avenue Road;
By-law 2013-0817 – Respecting 2, 6 and 8 Gloucester Street and 601-613 Yonge Street;
By-law 2013-0826 – Respecting 159 Wellesley Street East;
By-law 2013-1043 – Respecting 951 to 971 Bay Street and 36 Wellesley Street West;
By-law 2013-1050 – Respecting 27-37 Yorkville Avenue and 26-32 and 50 Cumberland Street;

By-law 2013-1084 – Respecting 21 Avenue Road;
By-law 2013-1291 – Respecting 480 University Avenue;
By-law 2013-1341 – Respecting 200 Dundas Street East, 241-251 Jarvis Street and 280 George Street;
By-law 2013-1498 – Respecting 1 The Esplanade;
By-law 2013-1502 – Respecting 388 King Street West and 82 Peter Street;
By-law 2013-1503 – Respecting 81 and 87 Peter Street;
By-law 2013-1504 – Respecting 523, 525 and 525A Adelaide Street West;
By-law 2013-1523 – Respecting 197, 197R and 201 Yonge Street and 15 Shuter Street;
By-law 2013-1710 – Respecting 571 Dundas Street West, 21, 21a, 23, 23a, 91 Augusta Avenue, 73-75 Augusta Square and 20 Vanauley Street;
By-law 2013-1724 – Respecting 454-464 Yonge Street;
By-law 2013-1725 – Respecting 595 Bay Street, 14-80 Dundas Street West and 304-316 Yonge Street;
By-law 2014-0086 – Respecting 64-70 Shuter Street;
By-law 2014-0133 – Respecting 545, 555, 565 Sherbourne Street;
By-law 2014-0139 – Respecting 501-521 Yonge Street, 6-8 Alexander Street and 23 Maitland Street;
By-law 2014-0275 – Respecting the Regent Park Area;
By-law 2014-0303 – Respecting 17 Dundonald Street;
By-law 2014-0693 – Respecting 547, 549 and 555 College Street;
By-law 2014-0699 – Respecting 523, 525 and 525A Adelaide Street West;
By-law 2014-1011 – Respecting lands located on the north side of Dupont Street from Ossington Avenue to Kendal Avenue;
By-law 2014-1027 – Respecting 156-174 Front Street West and 43-51 Simcoe Street;
By-law 2014-1028 – Respecting 186-188 Jarvis Street;
By-law 2014-1039 – Respecting 50-60 and 62-64 Charles Street East and 47 and 61 Hayden Street;
By-law 2014-1040 – Respecting 50-60 and 62-64 Charles Street East and 47 and 61 Hayden Street;
By-law 2014-1041 – Respecting 324, 326, 328 and 332 Richmond Street West;
By-law 2014-1051 – Respecting 481 University Avenue, 210 Dundas Street West, 70 Centre Avenue and 137 Edward Street;
By-law 2014-1061 – Respecting 57 Spadina Avenue;
By-law 2014-1063 – Respecting 5 to 25 Wellesley Street West and 14 to 26 Breadalbane Street and 155 St. Luke Lane;
By-law 2014-1078 – Respecting 219 Queen Street West;
By-law 2014-1081 (OMB) – Respecting 24 Mercer Street;
By-law 2015-0391 – Respecting 47-55 St George Street;
By-law 2015-0645 – Respecting 836-850 Yonge Street and 1-9A Yorkville Avenue;
By-law 2015-0646 – Respecting 836-850 Yonge Street and 1-9A Yorkville Avenue;
By-law 2015-0806 – Respecting 231-237 College Street and 177-189 Huron Street;
By-law 2015-0811 – Respecting 424-460 Adelaide Street East;
By-law 2015-0837 – Respecting 355 Church Street;
By-law 2015-1042 – Respecting 270-288 Church Street, 101-105 Bond Street and 111 Bond Street;
By-law 2015-1049 – Respecting 27-37 Yorkville Avenue and 26-32 and 50 Cumberland Street;
By-law 2015-1050 – Respecting 27-37 Yorkville Avenue and 26-50 Cumberland Street;
By-law 2015-1275 – Respecting 375, 375R and 379 and 381 Queen Street West;
By-law 2015-1366 – Respecting 500 Lake Shore Boulevard West;
By-law 2016-0132 – Respecting 20 to 26 Lombard Street and 25 Richmond Street East;
By-law 2016-0239 – Respecting 602-622 King Street West, 499-505 Adelaide Street West and 1 and 11 Adelaide Place;
By-law By-law No. 2016-0273 – Respecting 40-58 Widmer Street;
By-law 2016-0382 – Respecting 175-191 Dundas Street East and 235 Jarvis Street;
By-law 2016-0524 (OMB) – Respecting 40 Wellesley Street East;
By-law 2016-0529 – Respecting 70 and 72 Carlton Street;
By-law 2016-0671 – 604-618 Richmond Street West;
By-law 2016-0757 – Respecting 11 and 33 Centre Avenue and 80 Chestnut Street;
By-law 2016-0758 – Respecting 11 and 33 Centre Avenue and 80 Chestnut Street;
By-law 2016-0778 – Respecting 587-599 Yonge Street, 2 and 4 Dundonald Street, and 7 and 9 Gloucester Street;
By-law 2016-0780 – Respecting 245,251 and 255 College Street, 39 and 40 Glasgow Street;
By-law 2016-1047 – Respecting 143-177 Lake Shore Boulevard East, 26 Richardson Street and 130-132 Queens Quay East;
By-law 2016-1284 – Respect 250 Davenport Road;
By-law 2016-1285 – Respecting 250 Davenport Road;

By-law 2017-0788 – Respecting 60 Shuter Street and 187 and 189 Church Street;
By-law 2017-0789 – Respecting 60 Shuter Street and 187 and 189 Church Street;
By-law 2017-0859 – Respecting 154 Front Street East;
By-law 2017-0974 (OMB) – Respecting 50 Wellesley Street East and 31-35 Dundonald Street;
By-law 2017-0975 (OMB) – Respecting 50 Wellesley Street East and 31-35 Dundonald Street;
By-law 2017-1091 – Respecting 60 Shuter Street and 187 and 189 Church Street;
By-law 2017-1092 – Respecting 60 Shuter Street and 187 and 189 Church Street;
By-law 2017-1255 – Respecting 7 Labatt Avenue and 77 River Street;
By-law 2017-1256 – Respecting 7 Labatt Avenue and 77 River Street;
By-law 2017-1479 – Respecting 81 Wellesley Street East;
By-law 2018-0591 – Respecting 89 Avenue Road;
By-law 2018-0592 (LPAT) – Respecting 283 Adelaide Street West;
By-law 2019-0398 – Respecting 81 Wellesley Street East;
By-law 2019-1528 – Respecting 545, 555, 561, 565, 583, 589, 591, 595, 599 and 601 Sherbourne Street, 306-334 Bleecker Street, 346-350 Bleecker Street, 354-368 Bleecker Street, 60-68 Earl Street, 280-294 Bleecker Street, 61 Earl Street and 3-7 Howard Street;
By-law 2019-1529 – Respecting 545, 555, 561, 565, 583, 589, 591, 595, 599 and 601 Sherbourne Street, 306-334 Bleecker Street, 346-350 Bleecker Street, 354-368 Bleecker Street, 60-68 Earl Street, 280-294 Bleecker Street, 61 Earl Street and 3-7 Howard Street;
By-law 2019-1548 (LPAT) – Respecting 170 Spadina Avenue and 3, 5, and 7 Cameron Street;
By-law 2020-0764 (OMB) – Respecting 225 Jarvis Street;
By-law 2020-0765 (OMB) – Respecting 225 Jarvis Street;
By-law 2020-365 (LPAT) – Respecting 489, 495, 499, 511, 519-529 and 539 King Street West; and
By-law 2020-366 (LPAT) – Respecting 489, 495, 499, 511, 519-529 and 539 King Street West; [By-law: 1107-2016]

(5) Prevailing By-laws in Former General Zoning By-law 438-86

None of the provisions of 600.10.10(1)(A), 600.10.10(1)(B), 600.10.10(1)(C) and 600.10.10(D) and (E) apply to prevent the erection of a **building** or **structure** if the site specific exception existing on a **lot** on October 4, 2016 includes either of the following as a Prevailing By-law and Prevailing Section:

- (A) Section 12(2) 122 of **Former General Zoning By-law 438-86**;
- (B) Section 12(2) 229 of **Former General Zoning By-law 438-86**; and
- (C) Section 12(2) 250 of **Former General Zoning By-law 438-86**. [By-law: 1107-2016]

(6) Prevailing By-laws in Former General Zoning By-law 438-86

None of the provisions of this Article 600.10.10 Building Setback Overlay District "A" apply to prevent the erection or use of a **building** or **structure** permitted by the following Section 45 Planning Act minor variances:

Minor Variance No. A0771/05TEY – Respecting 130 Bloor Street West;
Minor Variance No. A0330/07TEY – Respecting 130 Bloor Street West;
Minor Variance No. A0728/07TEY – Respecting 456 Wellington Street West;
Minor Variance No. A0728/16TEY – Respecting 44 Gerrard Street East and 55 McGill Street;
Minor Variances authorized by the Ontario Municipal Board in File No. PL170398 (Committee of Adjustment File No. A221/16TEY) – Respecting 255-259 Wellington Street West, and 36 Windsor Street;
Minor Variance No. A0960/18TEY – Respecting 2 – 8 St. Thomas St; and
Minor Variance No. A1046/14TEY – Respecting 2 – 8 St. Thomas St. [By-law: 1107-2016]

(7) Definitions in Former General Zoning By-law 438-86

The **Former General Zoning By-law 438-86**, including the definitions, as amended, as they read on October 4, 2016, apply to assist in the interpretation of any minor variance referred to in the context of Regulations 600.10.10 (4) and (5) of this By-law.

[OLT Decision PL161316 issued December 31, 2021] [By-law: 1107-2016]

600.20 Priority Retail Streets Overlay Map

600.20.10 Priority Retail Streets Overlay District "A"

(1) District "A" Priority Retail Street

On a lot in the CR, CRE, I or IH zone, which abuts a **street** identified as a priority retail street on the Priority Retail Streets Overlay Map:

- (A) The first **storey** of a **mixed-use building** or **non-residential building** must provide a minimum of 60 percent of the **lot frontage** abutting the priority retail **street** for one or more of the following uses, provided that any use must be otherwise permitted on that **lot** by this By-law:

Ambulance Depot
Art Gallery
Artist Studio
Automated Banking Machine
Clinic
Club
Community Centre
Custom Workshop
Day Nursery
Eating Establishment
Education Use
Entertainment Place of Assembly
Financial Institution
Fire Hall
Hospital
Library
Massage therapy
Medical Office
Museum
Office
Performing Arts Studio
Personal Service Shop
Pet Services
Place of Assembly
Place of Worship
Police Station
Post-Secondary School
Private School
Production Studio
Public School
Recreation Use
Retail Service
Retail Store
Service Shop
Sports Place of Assembly
Take-out Eating Establishment
Veterinary Hospital
Wellness centre

- (B) A cumulative maximum of 15.0 metres of **lot frontage** for the following uses may be used for the purpose of meeting the requirement of Regulation (A) above;

Ambulance Depot
Art Gallery
Automated Banking Machine
Clinic
Club
Community Centre
Education Use

Entertainment Place of Assembly
Financial Institution
Fire Hall
Hospital
Laboratory
Library
Massage therapy
Medical Office
Museum
Office
Performing Arts Studio
Place of Assembly
Place of Worship
Police Station
Post-Secondary School
Private School
Production Studio
Public School
Recreation Use
Sports Place of Assembly
Veterinary Hospital
Wellness centre

(C) Each use provided in accordance with regulation (A) above, must have a main pedestrian entrance:

- (i) located parallel to and within 5.0 metres of the **lot line** abutting the priority retail **street**; and
- (ii) within 0.2 metres of the ground measured at the **lot line** abutting the **street** directly opposite the entrance;

(D) For each use provided in accordance with regulation (A) above, a minimum of 60 percent of the surface area of the **main wall** of the first **storey** facing the priority retail **street** must be windows or doors; and

(E) Regulation (D) above, does not apply to a **building** which is also a **heritage site**. [By-law: 1682-2019]

(2) Lawfully Existing Buildings

(A) If a **lawfully existing building** contains **lawful** uses on the first **storey** and does not satisfy the requirements of Regulations 600.20.10(1)(A) or (1)(B), those **lawful** uses are deemed to satisfy the requirements of Regulations 600.20.10 1)(A) and (1)(B);

(B) Any addition, extension or change of use on the first **storey** of a **lawfully existing building** must comply with Regulations 600.20.10(1)(A) and (1)(B) or be authorized by a Section 45 Planning Act minor variance;

(C) If a **lawful** main pedestrian entrance of a **lawfully existing building** is not located in accordance with Regulation 600.20.10(1)(C), that **lawful** main pedestrian entrance location is deemed to satisfy the requirements of Regulation 600.20.10(1)(C);

(D) Any addition or extension to a **lawfully existing building**, that abuts a **street** identified as a priority retail **street** on the Priority Retail Streets Overlay Map, and which requires a new main pedestrian entrance must comply with Regulation 600.20.10(1)(C) or be authorized by a Section 45 Planning Act minor variance; and

(E) If a **lawful main wall** of a **lawfully existing building** has a minimum surface area of windows and doors which is less than the minimum surface area required by Regulation 600.20.10(1)(D), that **lawful main wall** is deemed to satisfy the requirements of Regulation 600.20.10(1)(D). [By-law: 1682-2019]

(3) Building Types Exempt from Complying

None of the provisions of Article 600.20.10 Priority Retail Street Overlay District "A" apply to a **building** originally constructed as a **detached house, semi-detached house, duplex, triplex, fourplex, or townhouse**. [By-law: 1682-2019]

600.20.15 Transition: Priority Retail Streets

600.20.15.1 Transition: Building Permit Applications

(1) Building Permit Applications

Nothing in Article 600.20.10 will prevent the erection or use of a **building** or **structure** for which an application for a building permit was filed on or prior to June 5, 2019. [By-law: 1682-2019]

(2) Building Permit Applications

For the purposes of regulation 600.20.15.1 (1), an "application for a building permit" means an application for a building permit that satisfies the requirements set out in Article I, Building Permits of Chapter 363, Building Construction and Demolition of the City of Toronto Municipal Code. [By-law: 1682-2019]

600.20.15.2 Transition: Zoning By-law Amendment

(1) Zoning By-law Amendment Applications

Nothing in Article 600.20.10 will prevent the erection or use of a **building** or **structure**, for which a complete application for a zoning by-law amendment was filed on or prior to June 5, 2019. [By-law: 1682-2019]

(2) Zoning By-law Amendment Applications

For the purposes of regulation 600.20.15.2(1), a "complete application for a zoning by-law amendment" means an application which satisfies the requirements set out in the City of Toronto Official Plan Policy 5.5.2. [By-law: 1682-2019]

600.20.15.3 Transition: Minor Variance Applications

(1) Minor Variance Applications

Nothing in in Article 600.20.10 will prevent the erection or use of a **building** or **structure**, for which:

- (A) A complete application for a minor variance under Section 45 of the Planning Act was filed on or prior to June 5, 2019; or
- (B) A complete application for a minor variance under Section 45 of the Planning Act was filed after to June 5, 2019 based on a building permit referred to in regulation 600.20.15.1(1). [By-law: 1682-2019]

(2) Minor Variance Applications

For the purposes of regulation 600.20.15.3(1), a "complete application for a minor variance" means an application which satisfies the requirements of Section 2 of Ontario Regulation 200/96 (Minor Variance Applications) under the Planning Act. [By-law: 1682-2019]

600.30 Inclusionary Zoning

600.30.1 Definitions

(1) Affordable Rental Housing Unit Definition

For the purposes of Section 600.30, **affordable rental housing unit** means a **dwelling unit** where the **total monthly shelter cost** is at or below the lesser of one times the average City of Toronto rent, by **dwelling unit** type, as reported annually by the Canada Mortgage and Housing Corporation, or 30 percent of the before-tax monthly income of renter households in the City of Toronto as follows:

- (A) studio units: one-person households at or below the 50th percentile income;
- (B) one-bedroom units: one-person households at or below the 60th percentile income;
- (C) two-bedroom units: two-person households at or below the 60th percentile income; and
- (D) three-bedroom units: three-person households at or below the 60th percentile income. [By-law: 941-2021]

(2) Affordable Ownership Housing Unit Definition

For the purposes of Section 600.30, **affordable ownership housing unit** means a **dwelling unit** where the purchase price (which for new units is inclusive of Harmonized Sales Tax payable by the purchaser) is at or below an amount where the **total monthly shelter cost** is affordable, based on paying no more than 30 percent of before-tax monthly income, to all households in the City of Toronto as follows:

- (A) studio units: households earning at or below the 30th percentile income;
- (B) one-bedroom units: households earning at or below the 40th percentile income;
- (C) two-bedroom units: households earning at or below the 50th percentile income; and
- (D) three-bedroom units: households earning at or below the 60th percentile income. [By-law: 941-2021]

(3) Total Monthly Shelter Cost

For the purposes of Section 600.30, total monthly shelter cost:

- (A) for an **affordable rental housing unit**, means the gross monthly rent inclusive of utilities for heat, hydro, hot water and water; and
- (B) for an **affordable ownership housing unit**, means:
 - (i) the mortgage principal and interest based on a 25-year amortization, 10 per cent down payment and the mortgage rate for a conventional 5-year mortgage as reported by the Bank of Canada in January of the applicable year, and a mortgage insurance premium;
 - (ii) property taxes calculated on a monthly basis based on the purchase price; and
 - (iii) standard condominium fees. [By-law: 941-2021]

(4) Affordable Housing Unit Definition

For the purposes of Section 600.30, **affordable housing unit** means a **dwelling unit** which is either an **affordable rental housing unit** or an **affordable ownership housing unit**. [By-law: 941-2021]

(5) Purpose-Built Rental Housing Definition

For the purposes of Section 600.30, **purpose-built rental housing** means a **building** or part of a **building**:

- (A) containing **dwelling units** which:
 - (i) are not individually owned;
 - (ii) are available for rent; and
 - (iii) are not in a condominium registered under section 2 of the Condominium Act, 1998 or a predecessor of that section;
- (B) which was originally constructed for rental; and
- (C) which is not organized as a life lease project and the right to occupy the **dwelling units** is based on a life lease interest. [By-law: 941-2021]

(6) Ownership Housing

For the purposes of Section 600.30, **ownership housing** means a **building** or part of a **building** containing **dwelling units** which are individually owned as part of freehold ownership, a condominium registered under section 2 of the Condominium Act, 1998 or a predecessor of that section. [By-law: 941-2021]

(7) Non-profit Housing Provider

For the purposes of Section 600.30, a **non-profit housing provider** means:

- (A) a corporation without share capital to which the Corporations Act applies, that is in good standing under that Act and whose primary object is to provide housing;
- (B) a corporation without share capital to which the Canada Business Corporations Act applies, that is in good standing under that Act and whose primary object is to provide housing;
- (C) a non-profit housing co-operative that is in good standing under the Co-operative Corporations Act; or
- (D) an organization that is a registered charity within the meaning of the Income Tax Act (Canada) or a non-profit organization exempt from tax under paragraph 149 (1) (l) of that Act, and whose land is owned by the organization, all or part of which is to be used as affordable housing. [By-law: 941-2021]

(8) Rental Replacement Unit

For the purposes of Section 600.30, **rental replacement unit** means a **dwelling unit** which is required to be replaced pursuant to Section 3.2.1.6 of the City of Toronto Official Plan. [By-law: 941-2021]

600.30.10 Inclusionary Zoning Overlay

(1) Affordable Housing Units in Inclusionary Zoning Overlay Area IZ1

On a **lot** which is located entirely within an area identified as Inclusionary Zoning Area IZ1 on the Inclusionary Zoning Overlay Map:

- (A) for a **purpose-built rental housing building** there is no minimum requirement for **affordable rental housing units**;
- (B) for an **ownership housing building**:
 - (i) a minimum of 7 percent of the total **gross floor area** for residential uses must be provided as **affordable rental housing units**; or
 - (ii) a minimum of 10 percent of the total **gross floor area** for residential uses must be provided as **affordable ownership housing units**.
- (C) where a **purpose-built rental housing building** is converted to an **ownership housing building**, the requirements of (B) will apply. [By-law: 941-2021]

(2) Affordable Housing Units in Inclusionary Zoning Overlay Area IZ2

On a **lot** which is located entirely within an area identified as Inclusionary Zoning Area IZ2 on the Inclusionary Zoning Overlay Map:

- (A) for a **purpose-built rental housing building** there is no minimum requirement for **affordable rental housing units**;
- (B) for an **ownership housing building**:
 - (i) a minimum of 6 percent of the total **gross floor area** for residential uses must be provided as **affordable rental housing units**; or
 - (ii) a minimum of 8 percent of the total **gross floor area** for residential uses must be provided as **affordable ownership housing units**; and
- (C) where a **purpose-built rental housing building** is converted to an **ownership housing building**, the requirements of (B) will apply. [By-law: 941-2021]

(3) Affordable Housing Units in Inclusionary Zoning Overlay IZ3

On a **lot** which is located entirely within an area identified as Inclusionary Zoning Area IZ3 on the Inclusionary Zoning Overlay Map:

- (A) for a **purpose-built rental housing building** there is no minimum requirement for **affordable rental housing units**;

(B) for an **ownership housing building**:

- (i) a minimum of 5 percent of the total **gross floor area** for residential uses must be provided as **affordable rental housing units**; or
- (ii) a minimum of 7 percent of the total **gross floor area** for residential uses must be provided as **affordable ownership housing units**; and

(C) where a **purpose-built rental housing building** is converted to an **ownership housing building**, the requirements of (B) will apply. [By-law: 941-2021]

(4) Affordability

On a **lot** which is located entirely within an area identified as Inclusionary Zoning Area IZ1, Area IZ2 or Area IZ3 on the Inclusionary Zoning Overlay Map:

- (A) the **affordable rental housing units** and **affordable ownership housing units** required by regulations 600.30.10(1), 600.30.10(2) and 600.30.10(3) must be provided as **affordable rental housing units** or **affordable ownership housing units** for a minimum of 99 years from the date of the first residential occupancy of each **affordable housing unit**. [By-law: 941-2021]

(5) Net Proceeds from Sale of Affordable Housing Unit

On a **lot** which is located entirely within an area identified as Inclusionary Zoning Area IZ1, Area IZ2 or Area IZ3 on the Inclusionary Zoning Overlay Map:

- (A) the City will receive no more than 20 percent of the net proceeds of the sale of an **affordable ownership housing unit**, which would be equivalent to no more than 2 percent of the sale price, for the purposes of administration fees during the 99 year period referred to in 600.30.10(4); and
- (B) where an **affordable ownership housing unit** is sold at market price the City will receive 50 percent of the net proceeds of the sale. [By-law: 941-2021]

(6) Register Agreement on Title

The requirements of regulations 600.30.10(1), 600.30.10(2), 600.30.10(3), 600.30.10(4), and 600.30.10(5) must be secured by one or more agreements pursuant to Section 35.2(2) of the Planning Act that are in a form and registered on title to the lands to the satisfaction of the City Solicitor. [By-law: 941-2021]

(7) Exemptions

Regulations 600.30.10(1), 600.30.10(2), 600.30.10(3), 600.30.10(4), 600.30.10(5) and 600.30.10(6) do not apply to:

(A) a **development** which:

- (i) contains fewer than 100 **dwelling units** and 8,000 square metres of **gross floor area** for residential uses;
- (ii) will be owned and operated by a **non-profit housing provider** where the **non-profit housing provider** has 100 percent ownership interest; or
- (iii) will be owned and operated by a **non-profit housing provider** in a partnership in which:
 - (a) the **non-profit housing provider** has an ownership interest that is greater than 51 percent; and
 - (b) a minimum of 51 percent of the **dwelling units** will be **affordable housing units**; and

(B) a **student residence, retirement home, nursing home or residential care home**, including where the use is on the same **lot** or in the same **building** as **purpose-built rental housing or ownership housing**. [By-law: 941-2021]

(8) Lawfully Existing Buildings

Regulations 600.30.10(1), 600.30.10(2), 600.30.10(3), 600.30.10(4), 600.30.10(5) and 600.30.10(6) do not apply to a **lawfully existing building** except where any addition or extension to, or change of use within, a **lawfully existing building** results in:

- (A) 100 or more new **dwelling units** or 8,000 square metres or more of **gross floor area** for residential uses. [By-law: 941-2021]

(9) Rental Replacement Units Exclusion from Gross Floor Area

For the purpose of applying regulations 600.30.10(1), 600.30.10(2) and 600.30.10(3):

- (A) the total **gross floor area** for residential uses excludes the **gross floor area** of any **rental replacement units**; and
 - (B) existing **affordable rental housing units** secured as **rental replacement units** are not included in the total **gross floor area** provided as **affordable housing units**. [By-law: 941-2021]
- (10) Rental Replacement Units Exclusion from Unit Count
For the purpose of applying regulations 600.30.10(7) and 600.30.10(8), **dwelling units** that are secured as **rental replacement units** are not included in the total number of **dwelling units** or new **dwelling units**. [By-law: 941-2021]
- (11) Phasing of Requirements
Beginning January 1, 2025 and until January 1, 2030, the requirements for **affordable rental housing units** will increase by 1.5 percent per year for regulation 600.30.10(1)(B)(i), 1 percent per year for regulation 600.30.10(2)(B)(i) and 0.5 percent per year for regulation 600.30.10(3)(B)(i) and the requirements for **affordable ownership housing units** will increase at a rate of one point four times the requirements for **affordable rental housing units**. Beginning January 1, 2026, the requirements for **affordable rental housing units** will be 5 percent for regulation 600.30.10(1)(A) and 3 percent for regulation 600.30.10(2)(A), as shown on Schedule A attached to Zoning By-law 941-2021. [By-law: 941-2021]
- (12) Parking
Despite clause 200.5.10.1, no **parking spaces** are required for **affordable housing units**. [By-law: 941-2021]
- (13) Definition of Development
For the purpose of applying Regulation 600.30.10(7), a **development** is the construction, erection or placing of one or more **buildings** or **structures** on lands or the making of an addition, alteration or change of use to a **building** or **structure**. [By-law: 941-2021]

600.30.15 Transition

600.30.15.1 Transition: Zoning By-law Amendment and Site Plan Applications

- (1) Zoning By-law Amendment and Site Plan Applications
Nothing in Section 600.30 will prevent the erection or use of a **building** or **structure**, for which:
- (A) Complete applications for a zoning by-law amendment and site plan approval were filed on or prior to the later of September 18, 2022 or notice of approval of a "Protected Major Transit Station Area" by the Minister pursuant to the Planning Act;
 - (B) A zoning by-law amendment came into force prior to the passing of a Community Benefits Charge by-law and an agreement was executed in accordance with Section 37 of the Planning Act on or prior to the later of September 18, 2022 or notice of approval of a "Protected Major Transit Station Area" by the Minister pursuant to the Planning Act; or
 - (C) A complete application for site plan approval was filed on or prior to the later of September 18, 2022 or notice of approval of a "Protected Major Transit Station Area" by the Minister pursuant to the Planning Act. [By-law: 941-2021]
- (2) Zoning By-law Amendment Applications
For the purposes of regulation 600.30.15.1(1), a "complete application for a zoning by-law amendment" means an application which satisfies the requirements set out in the City of Toronto Official Plan Policy 5.5.2. [By-law: 451-2022]
- (3) Site Plan Approval Applications
For the purposes of regulation 600.30.15.1(1), a "complete application for site plan approval" means an application which satisfies the requirements set out in the City of Toronto Official Plan Policy 5.5.2. [By-law: 451-2022]

600.30.15.2 Transition: Minor Variance Applications

(1) Minor Variance Applications

Nothing in Section 600.30 will prevent the erection or use of a **building** or **structure**, for which:

- (A) A complete application for a minor variance under Section 45 of the Planning Act was filed on or prior to the later of September 18, 2022 or notice of approval of a "Protected Major Transit Station Area" by the Minister pursuant to the Planning Act; or
- (B) A complete application for a minor variance under Section 45 of the Planning Act was filed after September 18, 2022 or notice of approval of a "Protected Major Transit Station Area" by the Minister pursuant to the Planning Act in respect of a building permit referred to in regulation 600.30.15.3(1). [By-law: 941-2021]

(2) Minor Variance Applications

For the purposes of regulation 600.30.15.2(1), a "complete application for a minor variance" means an application which satisfies the requirements of Section 2 of Ontario Regulation 200/96 (Minor Variance Applications) under the Planning Act. [By-law: 941-2021]

600.30.15.3 Transition: Building Permit Applications

(1) Building Permit Applications

Nothing in Section 600.30 will prevent the erection or use of a **building** or **structure** for which:

- (A) an application for a building permit was filed on or prior to the later of September 18, 2022 or notice of approval of a "Protected Major Transit Station Area" by the Minister pursuant to the Planning Act; or
- (B) an application for a building permit was filed after September 18, 2022 or notice of approval of a "Protected Major Transit Station Area" by the Minister pursuant to the Planning Act, in respect of a zoning by-law amendment or site plan referred to in regulation 600.30.15.1(1) or a minor variance referred to in regulation 600.30.15.2(1). [By-law: 941-2021]

(2) Building Permit Applications

For the purposes of regulation 600.30.15.3(1), an "application for a building permit" means an application for a building permit that satisfies the requirements set out in Section 363-3.3. Building permit application requirements of Chapter 363, Building Construction and Demolition, of the City of Toronto Municipal Code. [By-law: 941-2021]

600.50 Community Overlay District Maps

600.50.10 Queen Street West Eating Establishment Community Overlay District Map

(1) Queen Street West Eating Establishment Community Overlay District Map

Within the area of the heavy lines on the Queen Street West Eating Establishment Community Overlay District Map in By-law No. 1050-2013 is subject to the following:

- (A) an **entertainment place of assembly** is not permitted;
- (B) an **eating establishment, take-out eating establishment, place of assembly and club** may only be on a **lot** with a **front lot line** or **side lot line** that abuts Queen Street West;
- (C) an **eating establishment, take-out eating establishment, place of assembly, club** and any use that is **ancillary** to these uses, that is above-ground may only be on the first **storey**;
- (D) despite regulation 40.10.20.100(1)(A), the total **interior floor area** of all **eating establishments, take-out eating establishments, places of assembly, clubs** and uses that are **ancillary** to these uses, on a **lot** may not exceed 200 square metres, excluding rooms used only for food preparation;
- (E) the **interior floor area** of internal passage ways used by patrons and staff which connect **eating establishments, take-out eating establishments, places of assembly, clubs** and uses that are **ancillary** to these uses, must be included in the **interior floor area** for regulation of (D) above;
- (F) the aggregate surface area of all windows and doors of an **eating establishment, take-out eating establishment, place of assembly, club** and any use that is **ancillary** to these uses, in a **main wall** that faces a **rear lot line** or a **street** other than Queen Street West may be no greater than 4.0 square metres;
- (G) despite regulation 150.100.20(1)(A), the following may occupy a maximum of 6% of the total **interior floor area** of an **eating establishment** to a maximum of 12 square metres:
 - (i) teletheatre gambling;
 - (ii) sound room;
 - (iii) areas dedicated to recreational activities, but not an area for a dance floor or disc jockey; and
 - (iv) any other entertainment area, but not an area for a dance floor or disc jockey.
- (H) an **outdoor patio**, may be:
 - (i) between the front main wall of a building and a front lot line that abuts Queen Street West; or
 - (ii) between the front **main wall** and a **side lot line** that does not abut a **street**, if it is no farther than 50% of the **building length** from the **front lot line**.
- (I) in the case of an **eating establishment** or **take-out eating establishment** that includes a beverage **manufacturing use** for beer, cider or wine, the **interior floor area** in (D) above may be reduced by the **interior floor areas** used for beverage **manufacturing use** for beer, cider or wine, and associated offices, storage rooms, and staff rooms. [By-law: 1050-2013(LPAT); 1198-2019]